25CHCV00447 25CHCV00447

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25CHCV00447 Hearing Date: July 10, 2026 Dept: F51

LOS ANGELES SUPERIOR
COURT

NORTH VALLEY DISTRICT

DEPARTMENT F-51

JULY
9, 2026

DEMURRER

Los
Angeles Superior Court Case # 25CHCV00447

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Demurrer filed: 5/4/26

MOVING PARTY: Defendants Magic Income Tax Services;
and Juan Carlos Salas (collectively, “Moving Defendants”)

RESPONDING PARTY: Plaintiff/Cross-Defendant Victor
Zambrano Raygoza (“Plaintiff”)

NOTICE: OK

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RELIEF REQUESTED: Moving Defendants demur against the fourth, eighth, ninth, tenth, and thirteenth causes of action in Plaintiff's third amended complaint ("TAC").

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TENTATIVE RULING: The unopposed demurrer is OVERRULED as to Plaintiff's fourth, eighth, and tenth causes of action, and SUSTAINED as to Plaintiff's ninth and thirteenth causes of action with 20 days leave to amend.

BACKGROUND¿

This action stems from a business dispute between Plaintiff/Cross-Defendant and Defendant/Cross-Complainant Marylu Ramos Gonzalez. Plaintiff alleges that in 2018, the parties founded Oplaai LLC, wherein Plaintiff holds 49% interest and Defendant owns 51% interest. (TAC ¶¶ 18–19.) On 5/15/24, the parties entered into separation agreement for dissolution of the company so that they could open competing businesses. (Id. at ¶ 24.) Plaintiff alleges that "instead of adhering to the Agreement's terms, Defendant has engaged in a pattern of misconduct including, but not limited to: misappropriating company funds, denying Plaintiff access to company accounts, making unauthorized payments to her own company and herself, failing to make required distributions, breaching confidentiality provisions, disparaging Plaintiff to clients, and failing to properly account for company revenues." (Id. at ¶ 37.) Plaintiff alleges that Moving Defendants "were retained by Zambrano and Ramos to reconcile Oplaai's books and records beginning in or around March 2025. Instead of serving the interests of both parties, these defendants have selectively assisted Ramos, withheld reconciliation, and substantially aided Ramos's acts." (Id. at 2:11–15.)

On 2/4/25, Plaintiff filed his original complaint, alleging against Defendant the following causes of action: (1) Breach of Contract; (2) Breach of Fiduciary Duty; (3) Breach of Implied Covenant of Good Faith and Fair Dealing; (4) Unfair Business Practices; (5) Conversion/Theft; (6) Interference with Prospective Economic Advantage; (7) Unjust Enrichment; (8) Accounting; (9) Money Had and Received; and (10) Injunctive Relief.

On 6/4/25,
Plaintiff filed his first amended complaint (“FAC”), alleging against Defendant the following causes of action: (1) Breach of Contract; (2) Breach of Fiduciary Duty; (3) Breach of Fiduciary Duty; (4) Breach of Implied Covenant of Good Faith and Fair Dealing; (5) Unfair Business Practices; (6) Conversion/Theft; (7) Interference with Prospective Economic Advantage; (8) Unjust Enrichment; (9) Accounting; and (10) Declaratory Relief.

On 7/3/25,
Defendant/Cross-Complainant filed her answer and cross-complaint, alleging against Plaintiff/Cross-Defendant the following causes of action: (1) Breach of Contract; (2) Intentional Interference with Prospective Economic Relations; (4) Breach of Fiduciary Duty; (5) Negligence, Gross Negligence; and (6) Declaratory Relief.

On
10/15/25, pursuant to stipulation, Plaintiff filed his second amended complaint (“SAC”), alleging against three named defendants the following causes of action: (1) Breach of Contract; (2) Breach of Fiduciary Duty; (3) Breach of Fiduciary Duty; (4) Aiding and Abetting Breach of Fiduciary Duty; (5) Breach of Implied Covenant of Good Faith and Fair Dealing; (6) Unfair Business Practices; (7) Conversion/Theft; (8) Conspiracy to Commit Breach of Fiduciary Duty; (9) Constructive Fraud; (10) Breach of Fiduciary Duty – Accountant Liability; (11) Interference with Prospective Economic Advantage; (12) Unjust Enrichment; (13) Accounting; and (14) Declaratory Relief.

On 4/3/26,
after the Court sustained Moving Defendants’ demurrer to the SAC, Plaintiff filed his operative third amended complaint (“TAC”), alleging the same causes of action. Only the fourth, eighth, ninth, tenth, and thirteenth causes of action are alleged against Moving Defendants.

On 5/4/26,
Moving Defendants filed the instant demurrer. No opposition has been filed to date. On 7/2/26, Moving Defendants filed a notice of non-opposition to the instant demurrer. The Court notes an ex parte application requesting a continuance of the hearing was filed by Plaintiff and was heard and denied on 7/9/26.

ANALYSIS

Moving Defendants demur to Plaintiff's claims against them on the basis that Plaintiff fails to allege facts sufficient to constitute the fourth, eighth, ninth, tenth, and thirteenth causes of action.

I. Meet-and-Confer

Moving Defendants' counsel declares that on 4/26/26, he and Plaintiff's counsel met and conferred regarding the issues discussed in the instant demurrer, but could not informally resolve the dispute. (Decl. of John R. Baldivia ¶ 5.) Based on the foregoing, the Court finds that counsel has satisfied the preliminary meet and confer requirements under Code of Civil Procedure section 430.41, subdivision (a).

II. Standing

Moving Defendants renew their argument that "Zambrano lacks direct claims against Movants relating to Movants' services furnished to Oplaai, of which Zambrano is a minority member. Zambrano's claims wholly regard Movants' reconciliation services to Oplaai. Movants' duty is to Oplaai." (Dem. 5:23–25.) This Court previously found that "Plaintiff's allegations are inconsistent, as he repeatedly alleges in the SAC that Moving Defendants were engaged by Oplaai LLC, and by both Plaintiff and Ramos, for various services. To this extent, the SAC is unclear as to what actionable conduct arises from Moving Defendants' alleged breach of any fiduciary duties owed to Plaintiff, individually, as opposed to their duties to Oplaai LLC, on behalf of which Plaintiff undisputedly lacks standing to bring a claim." (3/4/26 Min. Order, p. 6 [emphasis in original].)

In his TAC, "Zambrano introduces a revelatory oral contract. He holds this putative contract up as the basis to allege a fiduciary duty owed by Moving Defendants to him, individually. But his putative oral contract is just the same old Oplaai contract for reconciliation services. But now, somehow and without explanation, Zambrano contends he was interposed for Oplaai in an oral novation that ostensibly removed Oplaai as the client of Moving Defendants and instead positioned Zambrano, individually." (Dem. 5:1–6; TAC ¶¶ 43–45.) Moving Defendants argue that "the TAC's desperate, revelatory March 2025 oral contract is the same scope of services as the Oplaai/Moving Defendants accounting services." (Dem. 7:1–2.)

Moving
Defendants further argue that "even assuming arguendo that Zambrano convinced this Court that his revelatory March 2025 oral contract with Moving Defendants regarded different reconciliation of Oplaai client revenues and different distribution of Oplaai revenues, he is still not the putative recipient of such an oral agreement. Following Zambrano's legal theory, his company would be the client." (Id. at 8:15–19.)

While
Plaintiff has failed to oppose the instant demurrer, the Court finds that Moving Defendants' arguments attack the merits of Plaintiff's allegations, which is improper for resolution at the pleading stage. Based on the foregoing, the Court finds that Plaintiff has sufficiently amended his SAC to allege facts to support a contention that he engaged Moving Defendants in his individual capacity, and therefore has standing to bring direct claims against Moving Defendants.

III.
Aiding and Abetting Breach of Fiduciary Duty

Plaintiff's
fourth cause of action alleges Aiding and Abetting Breach of Fiduciary Duty against Moving Defendants. Liability for aiding and abetting another's tort may be imposed upon a party where that party "(a) knows the other's conduct constitutes a breach of duty and gives substantial assistance or encouragement to the other to so act or (b) gives substantial assistance to the other in accomplishing a tortious result and the person's own conduct, separately considered, constitutes a breach of duty to the third person." (Casey v. U.S. Bank National Association (2005) 127 Cal.App.4th 1138, 1144.)

Here,
Moving Defendants argue that "Zambrano provides no allegations as to if or how Salas or Magic Tax furnished 'substantial assistance or encouragement' for Ramos's purported breach of fiduciary duty." (Dem. 15:14–15.) "Similarly,

Zambrano makes no effort to allege how Salas's or Magic Tax's 'conduct was a substantial factor in causing harm' to Zambrano." (Id. at 15:16–18.)

However, upon review of the TAC, the Court notes that Plaintiff alleges that "Salas deliberately misrepresented his knowledge of the oral contract that he had formed in March of 2025 in order to benefit Ramos at the expense of Zambrano." (TAC ¶ 54.) Plaintiff further alleges that "Ramos and Salas have conspired with each other to artificially minimize the portion of Oplaai's funds which should be paid to Zambrano, and to improperly inflate the portion of these funds payable to Ramos." (Id. at ¶ 55.) Plaintiff further alleges that Moving Defendants "knew that Ramos was excluding Zambrano and misusing company funds, yet by withholding reconciliation and aligning themselves with Ramos, they substantially assisted her in perpetuating these breaches." (Id. at ¶ 56.)

Based on the foregoing, the Court finds that Plaintiff has alleged facts sufficient to constitute a cause of action for Aiding and Abetting Breach of Fiduciary Duty against Moving Defendants. Accordingly, the Court overrules the demurrer to Plaintiff's fourth cause of action.

IV. Conspiracy to Commit Breach of Fiduciary Duty

Plaintiff's eighth cause of action alleges Conspiracy to Commit Breach of Fiduciary Duty against Defendants. "Civil conspiracy is not an independent tort. Instead, it is a legal doctrine that imposes liability on persons who, although not actually committing a tort themselves, share with the immediate tortfeasors a common plan or design in its perpetration." (City of Industry v. City of Fillmore (2011) 198 Cal.App.4th 191, 211–212 [internal quotations omitted].) "The elements of a civil conspiracy are (1) the formation of a group of two or more persons who agreed to a common plan or design to commit a tortious act; (2) a wrongful act committed pursuant to the agreement; and (3) resulting damages." (Id. at 212.)

Here, Moving Defendants argue that "Zambrano simply fails to allege any 'wrongful conduct' by Salas or Magic Tax." (Dem. 16:15–16.) Moving Defendants further argue that “as a nonfiduciary to Zambrano, individually, Moving Defendants ‘cannot conspire to breach a duty owed only by a fiduciary’ i.e., by Ramos.” (Id. at 16:23–24.) However, the Court finds that Moving Defendants’ argument again attacks the merits of Plaintiff’s allegations, including that “the sum of his allegations are that Moving Defendants were too slow in the reconciliations and responding to the many demands of Zambrano’s lawyers, and too chummy with Ramos.” (Dem. 16:16–18.)

Based on the foregoing, the Court finds that Plaintiff has alleged facts sufficient to constitute a cause of action for Conspiracy to Commit Breach of Fiduciary Duty against Moving Defendants. Accordingly, the Court overrules the demurrer to Plaintiff’s eighth cause of action.

V.
Constructive Fraud

Plaintiff’s ninth cause of action alleges Constructive Fraud against Moving Defendants. A plaintiff alleging a cause of action for constructive fraud must show: “(1) a fiduciary relationship, (2) nondisclosure, (3) intent to deceive, and (4) reliance and resulting injury. Constructive fraud is any breach of duty that, without fraudulent intent, gains an advantage to the person at fault by misleading another to his prejudice.” (Tindell v. Murphy (2018) 22 Cal.App.5th 1239, 1249–1250.) Fairness requires that allegations of fraud be pled “with particularity” so that the court can weed out nonmeritorious actions before a defendant is required to answer. (Small v. Fritz Companies, Inc. (2003) 30 Cal.4th 167, 184.) The particularity requirement necessitates pleading facts that “show how, when, where, to whom, and by what means the representations were tendered.” (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.)

Here, Moving Defendants argue that “the TAC does not allege any particular accounts that were manipulated, any funds hidden or miscalculated in favor of Ramos, or any of the sort of fraudulent conduct one would expect to find in a legally cognizable fraud-based claim.” (Dem. 14:5–8.) “Zambrano does not explain his reliance on the Moving Defendants’ silence or omission. Zambrano does not allege resulting damages for Moving Defendants’ actions or inactions. … There is no causation, no damages, no context.” (Id. at 14:9–13.)

The Court finds that Plaintiff has alleged the elements of (1) a fiduciary relationship (TAC ¶ 112), (2) nondisclosure (TAC ¶ 114), and (3) resulting injury (TAC ¶ 116), Plaintiff has failed to allege Moving Defendants' intent to deceive, and any justifiable reliance, with the requisite level of particularity for a fraud-based cause of action. Based on the foregoing, the Court finds that Plaintiff has failed to allege facts sufficient to constitute a cause of action for Constructive Fraud against Moving Defendants. Accordingly, the Court sustains the demurrer to Plaintiff's ninth cause of action.

VI.
Breach of Fiduciary Duty – Accountant Liability

Plaintiff's tenth cause of action alleges Breach of Fiduciary Duty against Moving Defendants. "The elements of a cause of action for breach of fiduciary duty are the existence of a fiduciary relationship, breach of fiduciary duty, and damages." (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 820.)

Here, as discussed above, the Court finds that Plaintiff has sufficiently alleged that Moving Defendants owed him, in his individual capacity, a fiduciary duty when they "accepted the engagement to perform the Oplaai royalty and reconciliation in late March 2025." (TAC ¶¶ 45, 119.) Plaintiff further alleges that Moving Defendants breached this duty, causing him damages. (Id. at ¶¶ 121–123.)

Based on the foregoing, the Court finds that Plaintiff has alleged facts sufficient to constitute a cause of action for Breach of Fiduciary Duty against Moving Defendants. Accordingly, the Court overrules the demurrer to Plaintiff's tenth cause of action.

VII.
Accounting

Plaintiff's thirteenth cause of action alleges Accounting against Defendants. "A cause of action for an accounting requires a showing that a relationship exists between the plaintiff and defendant that requires an accounting, and that some balance is due the plaintiff that can only be ascertained by an accounting. An action for accounting is not available where the plaintiff alleges the right to recover a sum certain or a sum that can be made certain by calculation." (Teselle v. McLoughlin (2009) 173 Cal.App.4th 156, 179.) "The right to an accounting can arise from the possession by the defendant of money or property which, because of the defendant's relationship with the plaintiff, the defendant is obliged to surrender." (Id. at 179–180.)

Here, Moving Defendants argue that "nothing in the accounting claims regards property, accounts, funds, or other transferrable interests held by, or controlled by Moving Defendants. There is no allegation that Moving Defendants have any right, title, or interest in such property, accounts, funds, or assets." (Dem. 14:25–27.) The Court agrees.

Based on the foregoing, the Court finds that Plaintiff has failed to allege facts sufficient to constitute a cause of action for Accounting against Moving Defendants. Accordingly, the Court sustains the demurrer to Plaintiff's thirteenth cause of action.

VIII.
Leave to Amend

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend." (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

Here, while the Court again notes that Plaintiff has failed to file any opposition to the instant demurrer, under the Court's liberal policy of granting leave to amend, Plaintiff is granted 20 days leave to amend the TAC to cure the defects set forth above.

CONCLUSION¿

The unopposed demurrer is OVERRULED as to Plaintiff's fourth, eighth, and tenth causes of action, and SUSTAINED as to Plaintiff's ninth and thirteenth causes of action with 20 days leave to amend.